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February 25, 2025

SENATE BILL NO. 83

By: Howard of the Senate

and

## Manger of the House

An Act relating to prisons and reformatories; amending 57 O.S. 2021, Section 549, which relates to inmate trust funds; modifying elements of exemption to certain account; updating statutory language; removing obsolete language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 549, is amended to read as follows:

Section 549. A. The State Board of Corrections shall have the following powers and duties with respect to the operation of prison industries, the Construction Division of the Department of Corrections, and administration of inmate trust funds:

1. The power to make leases or other contracts consistent with the operation of prison industries, and to set aside land or facilities for the use of such industry;

2. The power to establish conditions for expenditures by the Department of Corrections from the Industries Revolving Fund;

1        3. The power to negotiate wages and working conditions on  
2 behalf of prisoners working in prison industries or prisoners  
3 working in the Construction Division. Pay grades for the  
4 Construction Division "on-the-job training" inmate crews shall be as  
5 follows:

- 6            a. Pay Grade "A" - Inmate Worker,
- 7            b. Pay Grade "B" - Inmate Worker,
- 8            c. Pay Grade "C" - Apprentice, and
- 9            d. Pay Grade "D" - Skilled Craft;

10        4. The power to collect wages and other receipted funds on  
11 behalf of the inmate, to apportion inmate wages and funds in  
12 accordance with the law; and the duty to preserve those wages and  
13 funds reserved for the inmate in an account for his or her benefit,  
14 and to establish procedures by which the inmate can draw funds from  
15 this account under the conditions and limitations and for the  
16 purposes allowed by law;

17        5. The duty to establish the percentages of such wages which  
18 shall be available for apportionment to inmate mandatory savings; to  
19 the inmate for his or her personal use; to the lawful dependents of  
20 the inmate, if any; to the victim of the inmate's crime; for payment  
21 of creditors; for payment of costs and expenses for criminal actions  
22 against such inmate; and to the Department of Corrections for costs  
23 of incarceration. Provided, that not less than twenty percent (20%)  
24 of such wages shall be placed in an account, and shall be payable to

1 the prisoner upon his or her discharge; however, inmates with a  
2 sentence of life or life without the possibility of parole shall be  
3 exempt from this provision. Funds from this account may be used by  
4 the inmate for fees or costs in filing a civil or criminal action as  
5 defined in Section 151 et seq. of Title 28 of the Oklahoma Statutes  
6 or for federal action ~~as defined in~~ pursuant to Section 1911 et seq.  
7 of Title 28 of the United States Code, 28 U.S.C., Section 1911 et  
8 seq.;

9 6. The power to invest funds held by the Department of  
10 Corrections on behalf of each inmate in an interest-bearing account  
11 with the interest accruing and payable to the Crime Victims  
12 Compensation Revolving Fund, as provided in Section 142.17 of Title  
13 21 of the Oklahoma Statutes. The interest from each inmate's  
14 savings account shall be payable to the Crime Victims Compensation  
15 Revolving Fund, at such intervals as may be determined by the Board,  
16 in addition to any other payments to such fund required by the  
17 inmate's sentence or otherwise by law. An inmate shall not have the  
18 right, use, or control of any interest derived from any funds placed  
19 in a mandatory savings account;

20 7. The power to invest funds held by the Department of  
21 Corrections on behalf of each inmate in a commingled offender  
22 interest-bearing account held by the Office of the State Treasurer.  
23 The State Treasurer shall post interest to this account monthly.  
24 The Department of Corrections, at such intervals as may be

1 determined by the Board, will credit interest to the inmate based on  
2 the pro rata account balance of the inmate. Deposits into the  
3 inmate interest-bearing account will only be allowed when the trust  
4 fund draw account of the inmate has a balance in excess of One  
5 Hundred Dollars (\$100.00). Inmate mandatory savings account  
6 balances will not be used to determine the eligibility of the inmate  
7 to participate in the interest-bearing savings account. Inmates who  
8 participate in the interest-bearing account will only be allowed to  
9 transfer funds from their interest-bearing account to their draw  
10 account once every ninety (90) days. All inmate transfers from the  
11 interest-bearing account of the inmate to the draw account of the  
12 inmate must be approved by appropriate Department staff prior to  
13 transfer. All transfers of funds from an inmate interest-bearing  
14 account to external recipients must be reviewed and approved by  
15 appropriate Department staff prior to transfer. The Department will  
16 define in policy those rules and procedures that govern inmate  
17 interest-bearing account deposits and funds transfers; and

18 8. The power to invest canteen system, offender restitution,  
19 and other offender-related collections by the Department of  
20 Corrections in a commingled interest-bearing account held by the  
21 Office of the State Treasurer and invested as prescribed by Section  
22 89.2 of Title 62 of the Oklahoma Statutes. The State Treasurer  
23 shall post interest to this account monthly. By the fifteenth day  
24 of each month, the proportionate share of the interest from the

1 canteen system, offender restitution, and other offender-related  
2 collections, excluding that portion of the interest payable to the  
3 Crime Victims Compensation Revolving Fund and any interest payable  
4 to inmates for the inmate interest-bearing account, shall be  
5 remitted to the State Treasurer from the Department of Corrections  
6 for deposit into the General Revenue Fund.

7 B. The State Board of Corrections shall cause to be placed in  
8 an account income from the inmate's employment and any other income  
9 or benefits accruing to or payable to and for the benefit of ~~said~~  
10 the inmate, including any workers' compensation or Social Security  
11 benefits.

12 1. From this account the State Board of Corrections may charge  
13 for costs of incarceration any inmate working in private prison  
14 industries or any other inmate for costs of incarceration not to  
15 exceed fifty percent (50%) of any deposits made to ~~said~~ such  
16 account, unless ~~said~~ such deposits were from a workers' compensation  
17 benefit.

18 2. From this account, the State Board of Corrections may charge  
19 any inmate for costs of incarceration, an amount equivalent to one  
20 hundred percent (100%) of any deposits from a workers' compensation  
21 benefit to ~~said~~ such account.

22 3. The Department of Corrections shall pay into the Crime  
23 Victims Compensation Revolving Fund, as provided in Section 142.17  
24 of Title 21 of the Oklahoma Statutes, an amount equal to five

1 percent (5%) of the gross wages earned by inmates working in a  
2 private prison industries program, ~~said~~ the amount to be paid from  
3 the amount deducted for cost of incarceration.

4 4. Withdrawals and deposits shall be made according to rules  
5 and regulations established by the State Board of Corrections.

6 C. The Department of Corrections may assess costs of  
7 incarceration against all inmates ~~beginning on September 1, 1992.~~  
8 Such costs shall be a debt of the inmate owed to the Department of  
9 Corrections and may be collected as provided by law for collection  
10 of any other civil debt. In addition to the provisions of this  
11 section authorizing expenditure of inmate trust funds for costs of  
12 incarceration, any monies received for costs of incarceration shall  
13 be deposited in the Department of Corrections Revolving Fund.

14 SECTION 2. This act shall become effective November 1, 2025.

15 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY  
16 February 25, 2025 - DO PASS  
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